



File No.: EXP202309210

RESOLUTION OF RECONSIDERATION APPEAL

Examined the reconsideration appeal filed by A.A.A. (hereinafter, the appellant) against the resolution issued by the Director of the Spanish Agency for Data Protection dated January 8, 2024, and based on the following

FACTS

FIRST: B.B.B. (hereinafter, the complainant) on September 5, 2022, filed two complaints with the Spanish Agency for Data Protection directed against the users of the social network "Twitter" mentioned in the URLs indicated in said complaints. The reasons on which these complaints are based are as follows:

"Publication of a private video in which I appear without my consent. The video has gone viral and I have not given permission for either the editing of the video or its distribution. They were independent takes for a work purpose, not for publication on social networks without my consent since I am not the one who distributed the video. Reported on Twitter and response received without any measures being taken."

In the first of the complaints received, it is noted that the video was published on the social network "Twitter" on ***DATE.1 by the user "***USER.1". The video consists of a montage of successive takes (...).

Through the second complaint, the complainant "adds" documentation to the previous complaint and details the URLs that lead to the reported publications (22 videos and 2 images).

Along with the complaints, the following documentation is provided, among others:

- . Screenshot corresponding to the profile of the user on "Twitter" "***USER.2", "***USER.1". It includes the date "***DATE.1", the text "(...)" and an image of the video in question that corresponds to a photo of the complainant. It is noted that the video has a duration of 38 seconds and has had "1.7 M views".

- . Screenshots corresponding to the profiles of users on "Twitter" who disseminated the video or the images. In most of them, the dates are noted (...); texts such as "(...)"; etc.; and an image of the video in question that corresponds to a photo of the complainant. The duration of the video (38 seconds) and the number of views in each case (ranging from 30 to 443.8 thousand views) are noted.

SECOND: On September 5, 2022, in accordance with Article 65 of the LOPDGDD, the first of the complaints mentioned in the First Background was admitted for processing. The Admission Agreement was notified to the complainant on the same date.

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THIRD: On September 6, 2022, two new complaints from the complainant were received by the Agency. The complaints are directed against new users of "Twitter", "Instagram" and "YouTube", who also disseminated the video in question with similar comments to those mentioned previously, which are added to those included in the previous complaints, as well as against the responsible parties and users of the websites indicated, where the video in question was also inserted.

Among these last ones, there is a user of the website "pacot.es", identified as "***USER.3", who published the video in question on September 3, 2022, accessible at the URL "***URL.1", taken from the Twitter user "***USER.1".

The General Subdirectorate for Data Inspection accessed the thread generated by the user "***USER.3" with the title "(...)", verifying that, on the same date of September 3, 2022, other users of the website "pacot.es" made comments regarding the repeated video. The user identified as "***USER.4" made a comment at 17:03 hours, with the text "There is no color. (...) has struck deep in our hearts," and included a screenshot corresponding to a photograph taken from the published video in which the complainant can be seen alongside another person. The photograph is not shown with

total clarity, but not in a way that prevents the identification of the complainant.

FOURTH: The General Subdirector for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section two, of the LOPDGDD. The following checks and actions were carried out:

1. The Inspection Services report that the website "pacot.es" is a non-profit forum (there is no fee for users or advertising) focused on various hobbies such as video games, cinema, literature, etc., where the content is generated by the users themselves.
2. On September 8, 2022, information was requested from the Public Business Entity Red.es (REDES) regarding the entity responsible for the domain "pacot.es". REDES responds that the owner is B.B.B., residing at ***ADDRESS.1, with the email address "****EMAIL.1" and phone number ***PHONE.1. According to the information provided, the contact person for administrative, technical, and billing matters is C.C.C., residing at ***ADDRESS.2.
3. On October 3, 2022, information was requested from the entity Orange Espagne, S.A.U. regarding the ownership of the line ***PHONE.1. According to the information provided by this entity on October 19, 2022, the line belongs to D.D.D., residing at ***ADDRESS.3.
4. In the context of the preliminary investigative actions, on October 21, 2022, the

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The AEPD issued an "Agreement for the Adoption of Provisional Measures" by which it ordered D.D.D. to remove the content subject to the complaint posted on the website "pacot.es", accessible through the URL "****URL.1" (video about "(...)" by the user "****USUARIO.3").

In this agreement, which was notified on 10/11/2022, the following was expressly stated:

"1. Require D.D.D. (pacot.es) to remove the aforementioned content related to the complainant from the web addresses from which it is accessible, within a maximum period of 5 calendar days, avoiding, to the extent that the state of technology allows, the re-uploading or reloading of exact copies or replicas by the same or other users.

2. Require D.D.D. (pacot.es) to ensure that the removal or modification of the content is carried out in such a way that it prevents third parties from accessing and disposing of the original, but guarantees its preservation, for the purpose of safeguarding evidence that may be necessary in the course of the police or administrative investigation or the judicial process that may be instructed.

3. Require D.D.D. (pacot.es) to inform this Spanish Agency for Data Protection about the execution of the measure within a maximum period of 5 calendar days."

5. By requests dated 03/10, 17/11, and 21/11/2022, information was requested from the managers of "Wespec", hosting and domain provider, regarding the ownership of the email address "****EMAIL.1", identifying data and contact information of the domain "pacot.es", and the ownership and billing address of this domain.

This entity responded on 25/11/2022 as follows:

- The email address "****EMAIL.1" does not belong to the client. It was used to anonymize the client's email address and prevent them from receiving unwanted emails.
- The identifying and contact data of the owner of the domain "pacot.es" registered in their systems:
- (...)

According to the aforementioned entity, the previous data was provided by "E.E.E."

- Owner and billing address of the domain "pacot.es":
- (...)

6. On 07/12/2022, a request was made to E.E.E. (responsible for the website "pacot.es") for the removal of the content published at the URL "****URL.1" and information about the entity managing the website "pacot.es".

A response was received on 21/12/2022, indicating that the "thread" on the platform with the URL:

***URL.1) had been deleted (understood as the initial message and all responses to it) on the same day the letter was received (21/12/2022) at 13:15 (GMT).

It states that the website only retains the strictly necessary information for the proper functioning of the website, that it does not store information or personal data or photographs of individuals, registered or third parties, and that the possibility of uploading such files to the server is prohibited.

Regarding the photographs and videos mentioned in the request, it clarifies that they come from another website (<https://www.twitter.com>) and that it is the users of "pacot.es" who have placed links to that content. To clearly indicate that this content does not originate from "pacot.es", but from other websites, they are framed in a way that indicates which platform they are from (the users who have published that image on "twitter.com" are indicated and linked on "pacot.es").

It adds that "when an image from <https://www.twitter.com> is cited but not its original 'post', it appears with the domain <https://pbs.twimg.com>. No image is hosted on <https://pacot.es>." According to the documentation provided, this is the case for the image inserted with the comment made by the user "****USUARIO.4".

If the content of those links is removed at the source, it no longer appears on "pacot.es".

7. On 11/01/2023, the Inspection Services verified that the content accessible through the URL "****URL.1" had been removed. On the same date, it was verified that the page "pacot.es" was not available.

8. On 16/01/2023, in order to determine the authorship of the publications, information was requested from E.E.E. regarding the IP address from which the user "****USUARIO.4" published the claimed content on 03/09/2022, at 17:03, as well as the identifying registration data of this profile. This same information was requested regarding two other users who participated in the same thread related to the video subject to the proceedings.

On 28/01/2023, a response was received indicating that the website does not retain any personal data, beyond the IP address and an email address. For the case of the user "****USUARIO.4", it provides the IP address ***IP.1 and the address "****EMAIL.2". The same information is provided regarding the other two users for whom it was consulted (IP address and email address).

It also adds that "the website does not register the IP address of each individual message for logistical and data protection reasons, but does record the last one from which the user accessed it," which for the cited user corresponds to the one provided.

Subsequently, a request was made for the details of the date and time recorded in their systems corresponding to the assignment of the previously reported IP addresses.

In the response letter, dated 13/02/2023, E.E.E. provides the IP addresses assigned to the consulted users on 28/01/2023, at 16:27:43 (Spain time),

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On 13/02/2023, at 01:48:22 (Spain time). In relation to the user "****USUARIO.4", the following details are provided:

- The IP address ***IP.1 assigned to the profile "****USUARIO.4" corresponds to the date 28/01/2023, at 16:27:43 (Spain time).

- The IP address of "****USUARIO.4" on 13/02/2023, at 01:48:22 (Spain time) was ***IP.2.

9. In response to the request made by the Inspection Services, Telefónica de España, S.A.U. provided this Agency, on 14/02/2023, with the identifying data and address of the holders of the IP addresses indicated on the specified dates and times:

- On the date of 28/01/2023, between 16:00:00 and 17:00:00 hours, the holder of the IP ***IP.1 is F.F.F., with DNI ***NIF.1, and residing at street ***DIRECCION.4.

- On the date of 13/02/2023, between 01:00:00 and 02:00:00 hours, the holder of the IP ***IP.2 is H.H.H., with DNI ***NIF.2, and residing at street ***DIRECCION.5.

Furthermore, Telefónica de España, S.A.U. provided different identities for each of the IP addresses

indicated by E.E.E. in relation to another user of the website (the name, address, and DNI of the person to whom the IP address corresponding to 28/01/2023 was assigned do not match those of the person to whom the IP associated with the same user on 13/02/2023 was assigned).

10. On 09/03/2023, the identifying data (name, surname, and NIF) and address of the person who used their internet connection on 28/01/2023, between 16:00 and 17:00 hours (user “***USUARIO.4” on the website “pacot.es”) were requested from F.F.F.

On 27/03/2023, the indicated person stated that they do not know the website “pacot.es” nor do they use the internet, as they have a disabling visual impairment, and that they do not know if “their WIFI network has been used”.

11. On 09/03/2023, the identifying data (name, surname, and NIF) and address of the person who used their internet connection on 13/02/2023, between 01:00 and 02:00 hours (user “***USUARIO.4” on the website “pacot.es”) were requested from H.H.H.

On 30/03/2023, the indicated person identified the user “***USUARIO.4” as G.G.G. (hereinafter the claimed party), with the same address on street ***DIRECCION.5.

On the same date of 30/03/2023, a written statement was received from this user, the claimed party, in which they state that their privacy must have been violated in the forum, that they do not remember accessing with their user on the date of 13/02/2023; and that on those dates the website was closed or about to close. They add that on “pacot.es” it was not possible to upload images as such, but only through “linking”, with the image remaining hosted on the server where it was originally published, never on “pacot.es”. According to the claimed party, this website had numerous complaints from users.

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for account hacks and identity theft.

12. Finally, in order to clarify how the video made its way to social media after its recording, on two occasions the acting inspection requested the claimant to identify the author of the recording. These information requests were notified on the dates 28/03/2023 and 13/06/2023, but no response was received.

In the Preliminary Investigation Report, the Inspection Services of the AEPD highlight that the video in question, in which the claimant voluntarily participates, went viral after its publication on ***DATE.1 on Twitter by the user “***USER.1” and that, due to this wide dissemination, it can be found on dozens of sites and could be easily located with tags such as “(...)” or “(...)”. According to the Inspection Services, it is a replica of the videos that went viral on social media since 2021 regarding the matter “(...)”.

Dozens of result pages can be found using the search engine “Google”.

FIFTH: On July 25, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the respondent, G.G.G., in accordance with the provisions of Articles 63 and 64 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), for the alleged infringement of Article 6 of the GDPR, classified in Article 83.5 of the GDPR, considering that the respondent disseminated the video subject to the complaint without the consent of the claimant and that this dissemination constitutes an unlawful processing of personal data.

SIXTH: Once the aforementioned initiation agreement was notified, the respondent, after obtaining a copy of the proceedings, submitted a written statement in which they made the following allegations:

1. Violation of the principle of typicity, considering that the claimant consented to the recording of the video (appears looking at the camera and (...)), thus being aware of the recording and the use of their image.

The video went viral, reaching the level of public or journalistic interest, as can be seen in some of the links provided by the claimant. Thus, they understand that exercising a fundamental right such as the freedom of information regarding a fact that has gained notoriety falls within the legitimate interest

established in the GDPR and LOPDGDD.

In this regard, they point out that the forum “pacot.es” did not allow uploading videos or saving files, as stated by the administrator in the information provided to the AEPD Inspection Services. The only thing it allowed was to copy the link to another website and view it from that external source, with “pacot.es” being responsible for the video being embedded on the website and displayed directly.

The aforementioned principle of typicity is also violated due to the lack of specificity of the facts: the URL mentioned does not correspond to a post or thread opened by the respondent, the complete URL of the mentioned video is not specified, nor is the number and order of the message published in that thread, nor the external link, implying that the video was uploaded directly to “pacot.es”. It is also not specified whether only a link was published or if it was the website itself that embedded the video.

According to the respondent, the functioning of the website was as follows:

- If a Twitter link was pasted, the website itself automatically embedded the profile of the video owner, without that meaning that the video had been uploaded to the website.
- If the message was quoted, the Twitter profile would again appear automatically embedded in the new message. But this did not mean that that person was the author of the embedding.
- The website had a poorly executed UI/UX design error, so that sometimes, when commenting on a thread opened by another forum user, one would inadvertently respond to another user's message.

According to the respondent, the website was reported for hacks or modifications of profiles and messages in the forum and for users who received messages without permission.

On the other hand, they emphasize that the proceedings do not determine who, how, and when the video was uploaded. The AEPD makes an extensive interpretation of what constitutes processing, without considering that posting a link should not be considered data processing. The specific sanctionable fact is not presented, nor the link, nor the author of the post, nor the date.

In short, the respondent considers it unacceptable to claim that they have processed images without consent, because they did not upload or download the video from any website or social network, did not create or record it, nor did they introduce it into “pacot.es”.

2. They consider that the principle of presumption of innocence and the accusatory principle have been violated.

They reiterate that they did not upload the video or the link to the website in question and warn again that the author of a message in a forum can be easily altered from a database.

“pacot.es” used the Discourse forum system, which is open-source and has extensions that allow a thread or message to be changed in authorship. This modification can also be made using a query directly in the database (Postgre SQL).

They request the audit log of changes in the database that guarantees that the administrator or administrators of the forum system did not alter any message, pointing out that it is mandatory to maintain that unalterable log and that this will allow them to guarantee that their user, their messages, or their data have not been altered, during or after the events.

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Additionally, it requests that simple screenshots not be admitted as evidence, as they can also be altered with any browser that has access to inspection tools.

Since the AEPD accessed the message after the thread was created, its authorship may have been modified, which is common on “pacot.es”.

3. Violation of the principle of proportionality, as the fine was determined without any argumentation, without motivating the criteria applied and to what extent they affect the amount of the fine.

The degree of culpability has not been considered, as the video was disseminated by media outlets, which implies that the dissemination is legitimate, nor the fact that the damage was neutralized by the removal of the video.

4. Finally, it alleges defenselessness due to actions taken against third parties (the administrators or owners of the website) without the claimed party being able to make any statement to the contrary or

request that those individuals certify whether the messages could have been altered.

It emphasizes that it responded to the request made by the AEPD Inspection Services admitting to being the user “****USUARIO.4”, but did not admit to being the author of the video publication nor to accessing the forum on the date indicated in that request (02/13/2023). At that time, it had stopped frequenting the forum.

Regarding this detail, it clarifies that it was not asked about the date the video was uploaded, but rather about the date of 02/13/2023, which cannot correspond to the publication date of the video, as the complaint was filed in September 2022. There is a contradiction in the arrangement of the facts made by the AEPD.

Furthermore, the same opening agreement refers to the closure of the website “pacot.es” on 02/13/2023, which is also not true. It states that the website remained open until 02/17/2023, as announced by the administrator weeks in advance, and that the appropriate inquiries were not made to confirm this fact.

In addition, it adds that the defenselessness also results from the failure to guarantee the principle of contradiction and from the closure of the forum, which makes many of the facts unverifiable.

It concludes its allegations by expressly requesting:

- . That the file be closed due to lack of evidence and the impossibility of defense.
- . That the procedural defect in the communications of the requests and the sanctioning procedure be admitted, due to the inaccuracy of the facts, the actions, and the chronology presented.
- . That the amount of the fine be reduced to one euro, as no aggravating criteria have been specified.

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SEVENTH: On 08/31/2023, the instructor of the procedure agreed to open a period for evidence in which the following were practiced:

1. The complaint filed by the claimant and its documentation, the documents obtained and generated during the admission phase of the complaint, and the report of prior investigation actions were considered reproduced for evidentiary purposes.
2. The allegations to the initiation agreement of the sanctioning procedure presented by the claimed party, and the documentation accompanying them were considered reproduced for evidentiary purposes.

EIGHTH: On 10/13/2023, a proposal for resolution was made, stating that the director of the AEPD should sanction the claimed party for a violation of Article 6 of the GDPR, classified in Article 83.5 of the GDPR, with a fine of €2,000 (two thousand euros).

In this proposal for resolution, the following Established Facts were determined:

“FIRST: The claimed party has disseminated a video, without the consent of the recorded person, consisting of a montage of successive shots in which the affected person, recorded by someone known, looks at the camera and (...), which constitutes a processing of their image as a personal data considered unlawful, as it does not have their consent.”

It is concluded that “the claimed party publishes personal data of the claimant, such as the image and voice of the claimant” and that “the facts presented, that is, the dissemination of a video that can damage the image of a person, without their consent, means that the processing of their image as personal data may be considered unlawful, thus violating what is established in Article 6 of the GDPR, indicated in legal basis III, which could imply the commission of an infringement classified in Article 83.5 of the GDPR.”

NINTH: On 10/27/2023, the claimed party submitted allegations against the proposal for resolution, in which it basically reproduces its previous allegations, mainly highlighting that its arguments have not been taken into account and that its words have been transformed to emphasize in the proposal that it has acknowledged having disseminated the video, something it has never stated.

The proposal for resolution states that “the claimed party also indicates that it disseminates the video

based on legitimate interest,” when in none of its allegations or responses has it recognized or implied this fact, nor has it invoked legitimate interest in any way.

Regarding the consent of the claimant to the recording of the video, it points out that the same report of prior actions recognizes that the claimant participated “voluntarily” in the video recording and that this recording was made by a person whom the claimant “obviously knows,” concluding that “it has not been possible to determine how the video ended up published on social networks.”

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It also highlights that the claimant was subsequently requested on two occasions to collaborate with the investigation, without responding on either occasion. Regarding the facts, it states that it has become clear that the author of the thread on the website “pacot.es” was another user, who inserted a link to a Twitter user that uploaded the video to their personal account. These facts contradict the accusation recorded in the Proven Facts, where it is indicated that the respondent disseminated the video. With their username, only one comment appears, and below it, a blurry photo that does not identify anyone, and not a video. It understands that, according to the screenshot obtained from the forum by the Inspection Services, it cannot be stated that the photo belongs to their comment or to the forum user who replied afterward. That photo is hosted on an external server, on Twitter and not on “pacot.es.”

It warns, on the other hand, that the AEPD has not conducted an investigation into the functioning of the forum, having limited itself to the information provided by the website owners.

It invokes again the principle of presumption of innocence and the principle of proportionality and again alleges the defenselessness caused.

TENTH: On 08/01/2024, a resolution was issued by the Director of the Spanish Agency for Data Protection, by virtue of which a fine of 2,000 euros (two thousand euros) was imposed on the respondent for an infringement of Article 6 of the GDPR, classified under Article 83.5 of the GDPR.

ELEVENTH: On 06/02/2024, within the established deadline, a request for reconsideration was filed by the respondent (hereinafter the respondent or appellant) against the resolution mentioned in the Tenth Background, dated 08/01/2024, in which it highlights the same circumstances and allegations included in the documents submitted during the processing of the procedure and requests the following:

1. That, in the absence of evidence, the nullity or annulability of the contested resolution be declared.
2. That the procedural defect and the requests made by the AEPD be admitted, due to the inaccuracy of the narrated facts, of the chronology presented in the documents sent, and in the actions of the AEPD.
3. That, in light of the lack of justification for the severity of the sanction, the nullity or annulability of the contested resolution be declared.
4. That the nullity or annulability of the contested resolution be declared for violation of the presumption of innocence, due to unfounded accusations, falsely attributed arguments, and the defenselessness suffered.

Through “Other matters second,” it requests “that this time all my allegations be taken into account, respecting the subject to which they refer, and not altering the meaning and reasoning of them, which has until now caused misinterpretations or false accusations.”

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From the above in the presented appeal, the following statements should be highlighted:

- It reiterates that it requested in its first allegation the audit log of the database, which guarantees that the forum administrator did not alter any message.

- That the investigations carried out by the AEPD have revealed difficulties in locating the real individuals behind the forum profiles.

LEGAL GROUNDS

I

Competence

The Director of the Spanish Agency for Data Protection is competent to resolve this appeal, in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP) and Article 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD).

II

Absence of evidence

In this case, a complaint was filed against several social media users for the dissemination of a video showing the image and voice of the claimant or photographs taken from that video, along with comments that, in some cases, referred to their name. The complaints were also directed against responsible parties and users of various websites, where the video in question was also inserted. Among these last ones is the website "pacot.es," where a user identified as "****USER.3" published the video in question on 03/09/2022, accessible at the URL "****URL.1," taken from the Twitter user "****USER.1."

On the same date of 03/09/2022, other users of "pacot.es" made comments in the thread generated by the user "****USER.3" with the title "(...)," including the video itself or some image taken from it. Specifically, a person identified by the username "****USER.4" made a comment at 17:03 hours, with the text "There is no color. (...) has struck deep in our hearts," and included a screenshot corresponding to a photograph taken from the published video in which the claimant can be seen alongside another person.

To identify the person acting under that username and determine the authorship of the claimed facts, the Inspection Services of the AEPD requested information from the responsible party of "pacot.es" about several users of the website, including the

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creator of the thread and the user "****USUARIO.4", specifically the IP address from which they published the claimed content on 03/09/2022, at the corresponding time for each of them, as well as the identifying registration data of those profiles. The three users referred to in the information request had participated in the same thread related to the video subject of the proceedings.

In the response received, the responsible party of the aforementioned website informed that the IP address of each individual message is not recorded, but the last access made by the user in question is; and that no personal data is retained, except for that IP address and an email address. For the three consulted users, an IP address corresponding to the date of 28/01/2023 (date of the response) and an email address were provided.

Subsequently, the same responsible party of the website was requested for the details of the date and time recorded in their systems corresponding to the assignment of the reported IP addresses.

In a new written response, dated 13/02/2023, the IP addresses assigned to the consulted users were provided, corresponding to the day 28/01/2023, at 16:27:43 (Spain time), and to the day 13/02/2023, at 01:48:22 (Spain time). In relation to the claimed party, the following details were provided:

- The IP address ***IP.1 assigned to the profile "****USUARIO.4" corresponds to the day 28/01/2023, at 16:27:43 (Spain time).

- The IP address of "****USUARIO.4" on the day 13/02/2023, at 01:48:22 (Spain time) was ***IP.2.

Based on such data, in response to the request made by the Inspection Services, Telefónica de España, S.A.U. provided the AEPD with the identifying data and address of the holders of the

assigned IP addresses indicated, in the specified periods, it should be noted that in relation to the user "****USUARIO.4" a different person was indicated, with a different address, for each of the IP addresses and dates reported by the responsible party of the website:

- On the date of 28/01/2023, between 16:00:00 and 17:00:00 hours, the holder of the IP ***IP.1 is F.F.F., with DNI ***NIF.1, and address at street ***DIRECCION.4.

- On the date of 13/02/2023, between 01:00:00 and 02:00:00 hours, the holder of the IP ***IP.2 is H.H.H., with DNI ***NIF.2, and address at street ***DIRECCION.5.

Thus, although the claimed party has acknowledged being the user of "pacot.es" known as "****USUARIO.4", the result of these verifications does not allow us to ensure that all accesses made to the website with that username were indeed made by the claimed party.

It is also noteworthy that Telefónica de España, S.A.U. also provided different identities for each of the IP addresses associated by the responsible party of the website "pacot.es" to the user "****USUARIO.3" on the mentioned dates, with one person accessing with that username on the date 28/01/2023 and another different person accessing the website on 13/02/2023, also with that username, both.

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with different addresses.

Only in the case of the third consulted user did the identity of the person reported by the aforementioned operator coincide for the two specified dates.

Given the result obtained, the information regarding the IP addresses assigned to these users cannot be considered reliable.

It is also important to highlight that the IP addresses provided by the responsible party of "pacot.es" do not correspond to the time when the events took place, that is, these IP addresses were not the ones assigned to the users who participated in the forum, in the thread created by "****USUARIO.3", on the date 03/09/2023.

The request for information made to the responsible party of "pacot.es" requested the IP address from which these users published the claimed content, but the responsible party of the website informed that the IP address of each individual message is not recorded and that only the IP address of the last access is retained.

Therefore, it has not been possible to ascertain whether under the username "****USUARIO.4", on that date in September 2022, F.F.F., the claimed party, or an unknown third party acted, as the specific IP address assigned at that exact moment was not available, which would have provided some opportunity to identify the specific individuals who participated in the post related to the claiming party under the verified usernames.

It should also be noted that, according to the checks highlighted by the Inspection Services of this AEPD, the website was not available on the date 11/01/2023, a date prior to the accesses reported by the responsible party of the website, which supposedly took place on 28/01 and 13/02/2023.

Consequently, it is appropriate to conclude that there is no certainty regarding the authorship of the facts analyzed in the contested resolution, allegedly committed by the claimed party under the username "****USUARIO.4", so there is no factual basis to attribute a violation in the field of data protection or to sanction them for the same, proceeding to reconsider the validity of the contested resolution, with the acceptance of the appeal for reconsideration filed and the filing of the proceedings. It is taken into account that the website "pacot.es" was closed by its responsible party and that this complicates the ability of this AEPD to carry out new checks.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO ACCEPT the appeal for reconsideration filed by A.A.A., with NIF ***NIF.3, against the resolution of this Spanish Agency for Data Protection issued on January 8, 2024, in file

EXP202309210, with the filing of the proceedings.

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SECOND: NOTIFY this resolution to A.A.A., with NIF ***NIF.3.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within a period of two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned LPACAP. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency does not become aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it would consider the provisional suspension terminated.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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